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Case Number: 25NNCV02204 Hearing Date: July 31, 2026 Dept: D

TENTATIVE RULING

Calendar: 7

Date: July 31, 2026

Case No: 25NNCV02204 Trial Date: May 17, 2027

Case Name: Feigelstock v. Rozinskiy, et al.

MOTION TO COMPEL FURTHER RFPs

[CCP § 2031.310]

Moving Party: Plaintiff, Edward Feigelstock

Responding Party: Defendant, Yevgeniy Rozinskiy

RELIEF REQUESTED:

Compel defendant Yevgeniy Rozinskiy to provide further responses to Requests for Production Nos. 8-31, 33-37, and 39-83.

CAUSES OF ACTION: from Second Amended Complaint

1) Breach of Equitable Servitudes

2) Breach of Fiduciary Duties

- 3) Breach of Statutory Duties under the Davis Stirling Act
- 4) Right to Inspect Records
- 5) Intentional Misrepresentation
- 6) Negligent Misrepresentation
- 7) Constructive Fraud
- 8) Defamation
- 9) Breach of Implied Covenant of Good Faith and Fair Dealing
- 10) Declaratory Judgment

SUMMARY OF FACTS:

Plaintiff Edward Feigelstock brings this action against defendant Presidential Terrace Homeowners Corporation dba Presidential Terrace Homeowners Association (the Association) and defendant Yevgeniy Rozinskiy, an officer and director of the Association since at least April of 2011, on behalf of himself as an Owner and Member of the Association and on behalf of Members and Owners of the Association to enforce the governing documents and restrictions contained in the Association's recorded Declaration of Covenants, Conditions and Restrictions (CC&Rs).

Plaintiff alleges that the project for the Association has 20 units. According to its Certificate of Occupancy it is required to comply with the current building codes for California and the applicable requirements of the Municipal Code of Los Angeles, including requirements for a minimum of 45 dB FIIC for floor to ceiling soundproofing for residential spaces with habitable space below. Plaintiff alleges that as part of the CC&Rs as amended and restated by a vote of the Members of the Association and recorded in April of 2011, Section 10.3 (c) of the CC&Rs requires that all flooring have a minimum insulation and soundproofing level of 52 dB FIIC.

Plaintiff alleges that in July of 2024 a sound test was performed between plaintiff's unit and the unit above to determine whether the flooring and acoustic insulation met the architectural design and requirements of Section 10.3 (c) of the CC&Rs. However, the sound test results ranged from FIIC 37 dB to FIIC 44 dB, all well below the 52 dB requirement. In August of 2024, plaintiff submitted the sound test results to the Association and did not receive any response from the Association as to how it would enforce the relevant section of the CC&Rs.

Plaintiff alleges that on September 3, 2024, plaintiff attended a board meeting that did not contain any agenda items or notice of agenda items, to raise security concerns concerning stolen mail. However, that at the meeting defendant Rozinskiy suggested to the other directors and officers that the Association should waive enforcement of Section 10.3 (c) of the CC&Rs, and replace it with a standard requiring all hard floors to have half-inch cork as an underlayment. In addition, all flooring currently installed in any unit would be grandfathered, even if that flooring violated the current or amended Section 10.3 (c) or had no acoustic treatment whatsoever.

The board evidently at that meeting voted not to enforce Section 10.3 (c) as suggested and, to propose, and send out for balloting, a proposed amendment to remove the 52dB soundproofing requirement. Plaintiff alleges that despite knowledge that the Associations must adhere to proper notice and procedures, and that the September 3, 2024 meeting did not have

any agenda in the notice, which violates the Davis Stirling Act, defendants sent out balloting materials regarding the proposed amendment the board had adopted on September 3, 2024. Those materials were accompanied by a letter from the Law Office of Jeanne McDonald stating that an acoustical expert had reported it was impossible to achieve the 52dB FIIC soundproofing level, so that every unit with flooring replaced since the CC&Rs were adopted in 2011 was in violation and no one currently could change out their flooring without violating the CC&Rs. Plaintiff alleges is a false statement and no valid expert opinion has been submitted to support this contention.

Plaintiff alleges that plaintiff sent requests for resolution and notice of election defects to the Association. Therefore, the plaintiff sent a valid petition to recall defendant Rozinskiy. Plaintiff alleges that as of the filing of the initial complaint, it had been over 170 days since plaintiff submitted the recall petition. However, the election to recall Rozinskiy has still not properly been held, well over the maximum 150 days allowable under California law.

It is also alleged that the Association has wrongly notified plaintiff he was in violation of the CC&Rs' rental cap, and threatened to impose fines unless plaintiff began eviction proceedings on the family member who resided in the unit, and that this constituted knowing, selective, and bad faith enforcement of the CC&Rs for defendant Rozinskiy's personal reasons. It was an abuse of his authority, because the rental cap had never been enforced on family members of an owner. Plaintiff alleges that in December of 2024, counsel for the Association indicated that the Association acknowledged that plaintiff's unit was "no longer in violation," but reserved its right to pursue enforcement and kept this threat hanging over the head of plaintiff.

It is also alleged that the Association without following the proper procedure attempted to void portions of the election rules without proper notice. The Association also allegedly has continued to err in its election procedures, including failing to provide sufficient 28 day notice, providing non-compliant ballot materials with conflicting instructions, basing the election to amend the CC&Rs on a false premise, conducting an election that does not appear impartial, and refusing to comply with the Davis Stirling Act by having the votes counted in-person to ensure that Members can witness the counting and tabulation to ensure fairness and accuracy of the outcome of elections.

ANALYSIS:

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (CCP, § 2031.310, subd. (a); Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007)148 Cal.App.4th 390, 403.)

To request further production, a movant must establish: (1) good cause for the production (CCP, § 2031.310, subd. (b)(1); Sinaiko, supra, at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete (CCP, § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (CCP, § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (CCP, § 2031.310, subd. (a)(3); Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility. (CCP, § 2031.310, subd. (e).)

Plaintiff moves to compel defendant Yevgeniy Rozinskiy to provide further responses to RFPs Nos. 8-31, 33-37, and 39-83.

RFPs Nos. 10, 12-13, 15-16, 19, 21-22, 26-29, 31-32, 38, 45, 49, 55-56, 58, 67, 76-77

Plaintiff first argues that Rozinskiy wrongfully asserts that he does not have possession, custody, or control over documents responsive to RFPs Nos. 10, 12-13, 15-16, 19, 21-22, 26-29, 31-32, 38, 45, 49, 55-56, 58, 67, 76-77. (Mot., p. 7:19-20.) Plaintiff argues that "As Defendant has confirmed that he has continuously been President of the Association and a Director since January 1, 2011, he undoubtedly already has a trove of responsive documents in his email which have not been produced." (Mot., p. 7:20-23.)

In response to these discovery requests, Rozinskiy responded "After conducting a diligent search and reasonable inquiry, Responding Party cannot produce documents responsive to this request. To Responding Party's knowledge, documents responsive to this request have never existed in the possession custody or control of Responding Party." (Sep. Statement.) This response is a Code-compliant statement of inability to comply. (CCP, § 2031.230

In the opposition, Rozinskiy asserts that Plaintiff has separately requested the Association to produce the documents in its control and that Rozinskiy "is limited in his ability to ask other Directors of the Association to assist him with his responses to written discovery." (Opp., p. 6:9-11.) Rozinskiy's responses to the discovery requests at issue are Code-compliant. Plaintiff has not produced evidence that further responsive documents exist, and there is therefore not a sufficient evidentiary basis to establish that further responses are warranted.

RFPs Nos. 20, 62, 72, and 83

Plaintiff next argues that Defendant "improperly stands on objections" for RFPs Nos. 20, 62, 72, and 83. (Mot., p. 8:15-27.)

Rozinskiy concedes that his failure to provide a substantive response to RFP No. 20 was an oversight, and he will provide a response. (Resp. to Sep. Statement, p. 27:17-18.)

RFP No. 62 states: Please produce ALL DOCUMENT(S) RELATED TO invitations, settings, host and participant logs (including mute toggles), chats logs, attendance lists, for the virtual meeting held on April 3, 2025.

Plaintiff argues that Rozinskiy was the host of the April 3 meeting, and is able to obtain the requested information through the Zoom web portal. Plaintiff also argues that "To the extent Mr. Danny Rodriguez was the host, Defendant, as an officer and director of the Association, has the ability to obtain those records from the Association's manager." (Resp. to Sep. Statement, p. 102:15-17.) Rozinskiy asserts that he performed the search Plaintiff demanded which confirmed that Rozinsky did not host the April 3 meeting. (Resp. to Sep. Statement, p. 103:11-13.) Rozinskiy has lodged the exhibit demonstrating as much with the Court. (Ex. 5.) Thus, Rozinskiy has demonstrated that the documents responsive to this request are not within his possession.

As to RFPs No. 72, Rozinskiy responded with a Code-compliant statement of inability to comply. (Resp. to Sep. Statement, pp. 119:26-28.) Plaintiff has not produced evidence that further responsive documents exist and there is therefore not a sufficient evidentiary basis to establish that further responses are warranted.

As to RFP No. 83, Rozinskiy has served an amended response and produced additional documents. (Opp., p. 6:25-26; Ex. 3.)

Boilerplate Objections

Lastly, Plaintiff argues that Rozinskiy improperly asserts boilerplate objections to each response. (Mot., pp. 9:1-21.) Rozinskiy's boilerplate objections are stated without much consideration for their relevance to each request. This approach is not proper and certainly would be inadequate as basis for refusing to answer. However, Rozinskiy also provided Code-compliant responses to each request. The Court finds no grounds to determine that responsive documents are being withheld on the basis of nonmeritorious objections such that further responses are warranted on this ground.

Accordingly, the motion is DENIED.

The Court notes that Plaintiff has two additional motions to compel further responses currently pending, involving approximately 136 discovery requests, beyond the 74 requests at issue in the instant motion. The Court reminds counsel that discovery is a self-executing process that is designed to require little or no court intervention. (See *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) Given the volume of the parties' discovery disputes, the Court strongly encourages counsel to engage in meaningful meet and confer efforts to narrow the issues before seeking further judicial intervention. "[A] reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Id. at p. 1294.) In the absence of a meaningful meet and confer to reduce the number of contested responses, the Court will appoint a discovery referee to resolve all discovery disputes.

Request for Sanctions

The Court must impose monetary sanctions against anyone—party, nonparty, or attorney—who unsuccessfully makes or opposes the motion, unless it finds that the person to be sanctioned acted with substantial justification or other circumstances make the imposition of the sanctions unjust. (CCP §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [demand to produce]; *Sinaiko*, supra, 148 Cal.App.4th at 404 [interrogatories and demand to produce].)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

Even after a party provides discovery responses, a party can keep its motion on calendar and the court has authority to grant sanctions, even if it denies the motion to compel responses "as essentially unnecessary, in whole or in part." (*Sinaiko*, supra, 148 Cal.App.4th at 409.)

The burden is on the party subject to sanctions to show substantial justification or injustice. (*Mattco Forge, Inc. v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1436.)

Plaintiff requests sanctions in the amount of \$3,960.75. As the motion has been denied, so too is the request for sanctions.

RULING:

Plaintiff Edward Feigelstock's Motion to Compel Further is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.